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RA-010

ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NUMBER:
NAME: RONALD P. WARGO (SBN 197018) / CHADRICK J. CUNNINGHAM (SBN 290047)
FIRM NAME: FRIEDEMANN GOLDBERG WARGO HESS LLP
STREET ADDRESS: 400 Aviation Blvd., Ste. 200
CITY: Santa Rosa STATE: CA ZIP CODE: 95403-
TELEPHONE NO.: (707) 543-4900 FAX NO.: (707) 543-4910
EMAIL ADDRESS: rwargo@frigolaw.com; ccunningham@frigolaw.com
ATTORNEY FOR (name): Petitioner, HYUN JU MINTON, Administrator

ELECTRONICALLY
FILED
Superior Court of California, County of San Francisco
09/22/2025
Clerk of the Court
BY: MICHAEL RAYRAY
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO
STREET ADDRESS: 400 McAllister Street
MAILING ADDRESS: 400 McAllister Street
CITY AND ZIP CODE: San Francisco, CA 94102
BRANCH NAME: Civic Center Courthouse

PLAINTIFF/PETITIONER:
DEFENDANT/RESPONDENT:
OTHER CASE NAME: Estate of Tae Jung Kim

NOTICE OF REMOTE APPEARANCE

CASE NUMBER:
PES-24-307296

You must use this form to tell the court you intend to appear remotely in a civil case, unless the court's website describes an online process for giving notice. You may also use it to give the required notice to all other parties in the case. (Do not use this form in a juvenile dependency proceeding.)

Check the court's website for information about how to appear remotely, including the departments and types of cases or proceedings that allow remote appearances and ways to appear remotely in their departments for such appearances.

See page 3 of this form for more information, including deadlines for giving notice and for opposing a remote appearance if this notice is for an evidentiary hearing or trial.

A person appearing remotely should conduct themselves as though appearing in court in person.

1. The person who intends to appear remotely is *(check and complete all that apply):*
   - [x] Plaintiff/Petitioner *(name):* Hyun Ju Minton, Administrator
   - [x] Attorney for Plaintiff/Petitioner *(name):* Chadrick J. Cunningham
   - [ ] Defendant/Respondent *(name):*
   - [ ] Attorney for Defendant/Respondent *(name):*
   - [ ] Other *(name and role in case):*

2. The person or persons in 1 intends to appear remotely *(check one):*
   - a. [x] Throughout the case.
   - b. [ ] At the proceeding described below, including on any later dates if the proceeding is continued (*describe*):

     Type of proceeding:

     Set on *(date):* at *(time):* in *(department):*

     Before *(name of judicial officer, if known):*

3. The person intends to appear by *(check court's website for method that may be used):*

   [x] Videoconference [ ] Audio only (including telephone)

4. [ ] For evidentiary hearing or trial only (where testimony may be given): the party requests the following additional aspects of the proceeding be conducted remotely(*describe what the party wants to be done remotely and why; attach form MC-25 if more space is needed):*

PLAINTIFF: DEFENDANT:	CASE NUMBER: PES-24-307296

5. [x] I agree to keep the proceeding confidential to the same extent as would be required if I were appearing in person.

Date:9/22/2025

Chadrick J. Cunningham
(TYPE OR PRINT NAME)

Chadrick J. Cunningham
(SIGNATURE)

Notice to Other Parties

Anyone intending to appear remotely must provide notice to all other parties by the deadlines stated in Cal. Rules of Court, rule 3.672, and described on the next page. Notice may be provided orally, electronically, or by giving the other parties this form in a way to ensure it is received by the applicable deadline. The party must tell the court this was done either by filing a proof of service (this may be done on forms POS-040 or POS-050 for electronic service) or by completing and signing the declaration below.

Declaration of Notice

I gave notice that I intend to appear remotely to the other parties or persons entitled to receive notice in this case as stated below.

Complete one item below for each person notice was given to, and enter one of the following options for "Method of notice" *in c.*

- **Mail**: By mailing them a copy of this form (write the mailing address in d.)
- **Overnight delivery**: By having a copy of this form delivered overnight (write the delivery address in d.)
- **Electronic notice:** By e-mail or text message (write the e-mail or phone number in d.)
- **Phone**: By telling them over the telephone or leaving them voice mail (write the phone number in d.), or
- **In person**: By giving them a copy of this form in person, or by telling them orally in person (write the address in d.)

1. [x] Plaintiff/Petitioner
   a. Name: Hyun Ju Minton
   b. Date of notice: September 22, 2025
   c. Method of notice: Mail
   d. Address (mailing, in-person, or email) or phone number: 6 Socrates Way, Winchester, MA 01890

2. [ ] Attorney for:
   a. Name:
   b. Date of notice:
   c. Method of notice:
   d. Address (mailing, in-person, or email) or phone number:

3. [ ] Defendant/Respondent
   a. Name:
   b. Date of notice:
   c. Method of notice:
   d. Address (mailing, in-person, or email) or phone number:

4. [ ] Attorney for:
   a. Name:
   b. Date of notice:
   c. Method of notice:
   d. Address (mailing, in-person, or email) phone number:

5. [x] Other *(specify):* Parent
   a. Name: Bok Za Kim
   b. Date of notice: September 22, 2025
   c. Method of notice: Mail
   d. Address (mailing, in-person, or email) or phone number: 93 Hazen Road, Shirley, MA 01464

6. [ ] Attorney for:
   a. Name:
   b. Date of notice:
   c. Method of notice:
   d. Address (mailing, in-person, or email) phone number:

7. [ ] Other *(specify):*
   a. Name:
   b. Date of notice:
   c. Method of notice:
   d. Address (mailing, in-person, or email) or phone number:

7. [ ] Other *(specify):*
   a. Name:
   b. Date of notice:
   c. Method of notice:
   d. Address (mailing, in-person, or email) or phone number:

[ ] If more people were given notice, check here, attach form MC-025, titled as Attachment Notice, and add the information about how and when notice was given to each person.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: 9/22/2025

Lesley Garcia
(TYPE OR PRINT NAME)

Lesley Garcia
(SIGNATURE)

Docusign Envelope ID: C01CBC48-5B9F-43A3-A306-D62A0577A73C

Instructions for Giving Notice of Remote Appearance

(This page does not need to be filed.)

1. Court online procedures. Before using this form, check the court's website to see if that court has an online procedure for providing notice to the court of your intent to appear remotely instead. You can find a link to the website for each court at: https://www.courts.ca.gov/find-my-court.htm.

2. How to use this form. This form is intended for use in civil cases only (any cases not criminal or petitions for habeas corpus, other than petitions under Welf. & Inst. Code, § 5000 et seq.), to provide written notice of intent to appear remotely, to a court and the parties, as described in Code of Civil Procedure section 367.75. It is not needed in juvenile dependency hearings.

Check the court's website to determine how remote appearances work in that court before completing this form. If the court does not have an online procedure for giving notice to the court of intent to appear remotely, complete and file this form to give the court notice. If you intend to appear remotely throughout the case, you only need to file it once (check item 2a).

3. Notice to others. You may also use this form to show that you gave notice to other parties. You must give notice of your intent to appear remotely to all parties and other persons who are entitled to notice of the proceeding. (If you checked item 2a, you only need to give notice once. Otherwise, give notice to the court and others before each proceeding you intend to appear at remotely.) You can describe how and when you gave notice in the Declaration of Notice on page 2, or by filing a proof of service with the court.

4. When to file and give notice to others.

California Rules of Court, rule 3.672(g) and (h) state the deadlines by which you have to give notice of intent to appear remotely to the other parties and the court. (You can give notice earlier.) There are different deadlines :

For motions and proceedings in which people cannot testify

If a party gives or receives *at least 3 court days' notice* of the proceeding (including all regularly noticed motions):

- At least 2 court days before the proceeding.

If a party gives or receives *less than 3 court days' notice* of the proceeding (including ex parte applications):

- With the moving papers, if the notice to appear remotely is by the party that is asking for the hearing; or
- By 2 p.m. the court day before the hearing if the notice to appear remotely is by any other party.

Note: If a party misses these deadlines, they may still ask the court for permission to appear remotely.

For trials, including small claims trials, and hearings in which people may testify (evidentiary hearings)

If a party gives or receives *at least 15 court days' notice* of a trial or hearing date, and for all small claims trials:

- At least 10 court days before the trial or hearing date.

If a party gives or receives *less than 15 days' notice* of the trial or hearing (including hearings on protective orders):

- With the moving papers or at least 5 court days before the hearing, if the notice to appear remotely is by the party that is asking for the hearing; or
- By 2 p.m. the court day before the hearing if the notice to appear remotely is by any other party.

Note: If a party misses these deadlines, they may still ask thecourt for permission to appear remotely.

5. Opposition to remote appearances at trial or evidentiary hearing. If a party or witness has given notice of intent to appear remotely at a trial or evidentiary hearing (hearing at which people may testify), other parties in the action may oppose the remote appearance by filing *Opposition to Remote Proceeding at Evidentiary Hearing or Trial* (form RA-015). The opposition must be served on parties and other persons entitled to receive notice of the proceedings, by the deadlines summarized on that form. (Cal. Rules of Court, rule 3.672(h)(3).)

6. In-person appearance. A court may require any person to appear in person instead of remotely. (Code Civ. Proc., § 367.75(b).)

7. Recordings. No person may record a proceeding without first getting approval from the judge. (Cal. Rules of Court, rule 1.150(c).)

8. Accommodations for disability. If a party needs an accommodation for a disability, use form MC-410*, Disability Accommodations Request,* to tell the court about their needs. See form MC-410-INFO for more information.

9. Request for interpreter. If a party does do not speak English well, ask the court clerk as soon as possible for a court-provided interpreter. Form INT-300, *Request for an Interpreter,* or a local court form may be used to request an interpreter. If no court interpreter is available, it may be necessary to reschedule the hearing or trial.

For your protection and privacy, please press the Clear This Form button after you have printed the form.

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